

VARIANCE CRITERIA — TALKING POINTS

26 Titus Avenue (at Calef Road) • Case #ZBA2026-063

Public Hearing: Thursday, September 10, 2026 — 6:00 PM — City Hall, 3rd Floor Aldermanic Chambers

The Zoning Board can only grant a variance if it finds ALL FIVE of the criteria below are met. If even one fails, the board cannot legally approve it. Use these points when you speak or write in — you don't need to cover all five, just the ones that matter most to you.

1. NOT CONTRARY TO THE PUBLIC INTEREST

- No traffic, parking, safety, or lighting study was submitted with this application.
- Only 20 parking spaces for 13 units — potentially 40+ residents. Overflow will land on Titus Ave, Calef Road, and Mystic Street.
- Granting this converts a residential corner into a much higher-traffic, higher-density site with no independent analysis of the impact.

2. SPIRIT OF THE ORDINANCE IS OBSERVED

- Townhouses are not a permitted building type in this district — the City's own zoning review says so directly and denied the permit on that basis.
- Multifamily dwellings are separately flagged as not permitted under Section 4.3-A.1.C.
- The applicant needs relief from 6 separate ordinance sections at once: the underlying use, building type, lot area, height in stories, height in feet, and parking location.
- That volume of relief suggests the project doesn't fit the district — not a minor technical adjustment.

3. SUBSTANTIAL JUSTICE IS DONE

- The applicant's memo bases “substantial justice” partly on benefit to the applicant — but the Board cannot weigh the owner's economic return when deciding a variance.
- Justice has to be balanced against the burden on neighbors: overflow parking, added traffic, and reduced buffers are real costs the applicant's memo doesn't address.
- Substantial justice cuts both ways — it isn't served by shifting the cost of a bigger project onto the surrounding neighborhood.

4. VALUES OF SURROUNDING PROPERTIES NOT DIMINISHED

- The application contains no appraisal, market study, or real estate data to support this claim — only general assertions from the applicant's engineer.
- Every abutting lot is single-family. A 3-story, 13-unit complex changes the character of the immediate streetscape.

5. UNNECESSARY HARDSHIP

- The applicant's own engineer drew a By-Right Subdivision Plan showing this same parcel can yield 5 conforming single-family lots with zero variances needed.
- A fully compliant, reasonable alternative already exists on paper — that defeats any claim of hardship.
- Hardship must come from the property itself, not from the applicant's preference for a bigger project.

HOW TO WEIGH IN

- Speak at the hearing (in person, by agent, or by counsel) — September 10, 6:00 PM.
- Can't attend? Email written comments to pcd@manchesternh.gov before the hearing.
- Always reference Case #ZBA2026-063 and the address, 26 Titus Avenue.
- You can focus on just one or two criteria — one solid failure is enough to deny the variance.